



Kesteven County Council Act 1971

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ELIZABETH II



1971 CHAPTER xli

An Act to confer further powers on the county council of Lincoln, Parts of Kesteven, in relation to the finances of the county; to confer further powers on the county council and on local authorities and other public authorities with regard to the superannuation of and payment of compensation to or on behalf of employees and to the investment of superannuation funds; and for other purposes. [27th July 1971]

WHEREAS it is expedient that further and better provision should be made with reference to the finances of the county council of the administrative county of Lincoln, Parts of Kesteven (hereinafter referred to respectively as "the county council" and "the county"):

And whereas it is expedient to make provision for the superannuation of officers and servants of the county council and of local and other public authorities and as regards persons who contribute to the superannuation fund of the county council and for the benefit of their dependants and to amend the enactments relating thereto:

And whereas it is expedient that the powers of the county council in relation to the investment of their superannuation fund should be enlarged and extended as by this Act provided:

And whereas it is expedient that the other provisions in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act, 1933, have been observed:

1933 c. 51.

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short title. 1. This Act may be cited as the Kesteven County Council Act 1971.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Finance.

Part III.—Superannuation.

Part IV.—Miscellaneous and general.

Interpretation. 3.—(1) In this Act, unless otherwise expressly provided or the subject or context otherwise requires, the following expressions have the meanings hereby respectively assigned to them:—

“ the Act of 1933 ” means the Local Government Act, 1933;

“ the Act of 1937 ” means the Local Government Superannuation Act, 1937;

1937 c. 68.

“ the Act of 1953 ” means the Local Government Superannuation Act, 1953;

1953 c. 25.

“ the Council ” means the county council of the county;

“ contributor ” means a contributor to the fund as respects whom the Council are the employing authority;

“ the county ” means the administrative county of Lincoln, Parts of Kesteven;

- “ the county fund ” means the county fund of the Council;
“ employing authority ” has the meaning assigned thereto by section 1 of the Act of 1937;
“ enactment ” means any enactment, whether public, general or local, and includes any order, byelaw, rule, regulation, scheme or other instrument having effect by virtue of an enactment;
“ the fund ” means the superannuation fund maintained by the Council under Part I of the Act of 1937;
“ local authority ” means the council of a borough, or an urban or rural district in the county;
“ signature ” includes a facsimile of a signature by whatever process reproduced.

PART I
—cont.

(2) Any reference in this Act to an enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment including this Act.

PART II

FINANCE

4.—(1) In addition to the modes of borrowing prescribed by the Act of 1933, the Council may raise money—

- (i) for any purpose for which the Council are authorised to borrow;
(ii) in anticipation of the receipt of revenues, for any purpose for which the revenues of the Council may properly be applied;

Power to
raise money
by issue of
bills.

by means of bills (to be called “ Kesteven County Council bills ”, in this section referred to collectively as “ bills ” and separately as “ a bill ”) subject to, and in accordance with, the following provisions:—

- (a) A bill shall be in the form prescribed by regulations made under this section and shall be for the payment of the sum named therein in the manner and at the date therein mentioned, being a date not more than twelve months from the date of the bill:
(b) A bill shall entitle the holder thereof to payment at maturity of the sum expressed in the bill to be payable:
(c) Bills may be offered for purchase (whether by tender or otherwise) in such manner and on such conditions as the Council may determine:
(d) Bills shall be issued under the authority of a resolution passed by the Council, and shall bear the signature of the treasurer to the Council or of some other person authorised by the Council:

PART II
—cont.

- (e) The Council may make regulations providing for—
- (i) the preparation, form, mode of issue, payment and cancellation of bills;
 - (ii) the issue of new bills in lieu of bills defaced, lost or destroyed;
 - (iii) the prevention, by the use of counterfoils or of a special description of paper or otherwise, of fraud in relation to bills; and
 - (iv) the giving of a proper discharge on the payment of a bill:
- (f) The amount of money received in respect of a bill shall be deemed to be principal money raised by means of the bill and the difference between the amount payable in respect of a bill and the amount received in respect thereof shall be deemed to be interest on the principal money so raised:
- (g) The aggregate amount payable on bills current at any one time shall not (except by the amount payable on bills issued shortly before any other bills fall due in order to pay off the last-mentioned bills) exceed one-fifth of the amount estimated to be produced by the levying of rates in the county during the then current financial year to meet liabilities falling to be discharged by the Council:
- (h) Subject to the provisions of the last preceding paragraph, the Council may renew a bill at maturity:
- (i) The Council may borrow for the purpose of repaying the principal money raised by bills but except as aforesaid any power of the Council to borrow shall be suspended to the extent of the amount which has been raised by the issue of bills.

(2) The power of raising money under subsection (1) of this section may not be exercised by the Council in any financial year during which the amount estimated to be produced by the levying of rates in the county to meet liabilities falling to be discharged by the Council does not exceed three million pounds.

Power to
raise money
by bearer
bonds.

5. In addition to any other method by which the Council may raise any money which they are authorised to borrow, they may, with the consent of the Treasury and subject to such conditions as the Treasury may impose, raise the money by means of the issue of bearer bonds or other securities to bearer.

Power to
raise money
abroad.

6.—(1) Any method by which the Council are empowered by any enactment to raise any money which they are authorised to

borrow shall, notwithstanding anything in such enactment, be deemed to include the raising of money by that method outside the United Kingdom or in any foreign currency.

PART II
—cont.

(2) The powers conferred by the foregoing subsection shall not be exercised except with the consent of the Treasury, and subject to such conditions as the Treasury may impose.

(3) The enactments empowering the Council to raise money shall have effect in relation to a transaction authorised by this section for the raising of money in a foreign currency as if for any reference in those enactments to sterling there was substituted a reference to the foreign currency, and for any reference therein to a sum expressed in terms of sterling there was substituted a reference to the sum expressed in terms of the foreign currency (adjusted, where necessary, to produce an amount which the Council consider appropriate having regard to all the circumstances of the transaction).

7.—(1) The Council may lend to any local authority, and a local authority may borrow from the Council, upon such terms and conditions as may be agreed, such money as the Council think fit to lend and as the local authority are authorised to borrow for the purpose for which such money is proposed to be borrowed, and any money so lent shall be repaid to the Council by the local authority within the period prescribed by the sanctioning authority or otherwise for the repayment by the local authority of the money they are authorised to borrow:

Power to
Council to
lend money
to local
authorities,
etc.

Provided that the powers of this subsection shall not be exercised unless—

(a) the local authority borrowing from the Council are either—

(i) the council of a county district within the county; or

(ii) an authority of which the Council are a constituent member; or

(iii) an authority to which the Council appoint representatives; or

(iv) a member authority of a consortium of which the Council are also a member; or

(b) the sum lent by the Council is part of a larger sum borrowed by the Council by way of a stock issue, bond issue, foreign loan or issue of bills for their own needs and for the needs of another local authority seeking to raise money by the same means.

(2) Any sum borrowed by the Council for the purposes of this section shall be repaid within a period to expire not more than one year after that for which the same was lent by them to the local authority.

PART II
—cont.

(3) Where any sum is borrowed by the Council for the purposes of this section it shall be lawful for the Council for such periods as they may think fit to suspend any annual provision required to be made by virtue of any enactment for the time being in force for the repayment of the sum borrowed.

(4) The Council shall be entitled to charge such rate of interest in respect of any particular loan under this section as may be agreed between the Council and the borrower:

Provided that the Council shall ensure so far as it is reasonably practicable to do so that having regard to all the circumstances existing at the time the loan is made the rate of interest agreed is such that no loss is incurred by the Council in respect of the loan.

(5) All costs, charges and expenses incurred by the Council in respect of any particular loan under this section shall be met by the borrower.

1875 c. 83.

(6) In this section the expression "local authority" means the council of a county, county borough or county district and any other authority being a local authority as defined by section 34 of the Local Loans Act, 1875, and includes any joint board if all the constituent authorities are such local authorities as aforesaid and any police authority within the meaning of the Police Act, 1964, to the expenses of which the Council are for the time being required to contribute.

1964 c. 48.

Insurance
fund.

8.—(1) The Council may establish a fund to be called "the insurance fund" with a view to providing a sum of money which shall be available for making good such losses, damages, costs and expenses as may from time to time arise in respect of such risks as may from time to time be specified in a resolution of the Council (in this section referred to as "the specified risks").

(2) The establishment of an insurance fund under this section shall not prevent the Council from insuring in one or more insurance offices against the whole or any part of all or any of the specified risks.

(3) When the insurance fund shall amount to the prescribed amount, the Council shall discontinue the appropriations to the insurance fund under subsection (4) of this section, but, if the insurance fund is at any time reduced below the prescribed amount, the Council shall recommence and continue such appropriations until the insurance fund be restored to the prescribed amount, and if at any time the Council reduce the prescribed amount so that there are more moneys in the insurance fund than the sum so prescribed, such moneys as are in excess of the prescribed amount shall be transferred to the county fund and any moneys so transferred to the county fund shall be apportioned between the several accounts of that fund in such proportions as the Council consider equitable.

(4) The Council may from time to time appropriate to the insurance fund such sums as they think fit from the appropriate account or accounts in the county fund and shall show the same in their accounts under the separate heading or division in respect of the particular undertaking, department or service of the Council which, if the specified risks were insured against in an insurance office, would be properly chargeable with the payment of the premium of such insurance.

(5) (a) Except so far as the insurance fund and the proceeds of sale of securities in which that fund is invested may be necessary to meet losses, damages, costs and expenses in respect of the specified risks, or any of them, all moneys for the time being standing to the credit of the insurance fund shall (unless applied in any other manner authorised by any enactment) be invested in like manner and subject to the like restrictions as the moneys forming part of the superannuation fund maintained by the Council, and the interest and other annual proceeds received by the Council in respect of such investments shall be carried to and form part of the county fund.

(b) The Council shall in every financial year carry to the credit of the insurance fund out of the revenue moneys of the county fund an amount equal to the interest and other annual proceeds carried to the county fund in pursuance of the preceding paragraph of this subsection.

(6) (a) The insurance fund shall be applied to meet any losses, damages, costs or expenses sustained by the Council in respect of the specified risks which are payable out of the insurance fund, in the order of the dates on which such losses, damages, costs or expenses become ascertained, and if at any time and from time to time the insurance fund shall be insufficient to meet any such losses, damages, costs or expenses, the Council may, with the sanction of the Secretary of State, borrow under and subject to the provisions of Part IX of the Act of 1933 such sums of money as will be necessary to make up the deficiency.

(b) The amounts of the annual charges in respect of interest on and repayment of principal of any sums borrowed in pursuance of the preceding paragraph of this subsection and the amounts of any such deficiencies as aforesaid not made up by borrowing shall be paid out of the county fund and charged in the accounts of the Council under the separate headings or divisions in respect of such undertakings, departments or services of the Council and in such proportions as the Council may determine having regard to the risks through which such deficiencies arise.

(7) Any covenant or obligation binding on the Council to insure against any risk shall (except in so far as the terms of such

PART II
—cont.

covenant or obligation otherwise specifically provide) be deemed to be satisfied by a resolution of the Council under subsection (1) of this section that that risk shall be one of the specified risks.

1953 c. 26.

(8) In the event of the insurance fund ceasing to be required to meet losses, damages, costs and expenses in respect of the specified risks the insurance fund may be carried to and form part of any capital fund established by the Council under section 1 of the Local Government (Miscellaneous Provisions) Act, 1953, or (if the Council so determine) shall be applied in such other manner as the Secretary of State may approve towards the discharge of any debt of the Council, or otherwise for any purpose for which capital money may be properly applied.

(9) In this section—

“financial year” means the period of twelve months commencing on 1st April in any year and ending on 31st March in the next following year;

“insurance office” means—

(a) an insurance company; or

(b) an underwriter being a member of an association of underwriters;

“the prescribed amount” means such sum as may from time to time be prescribed by the Council.

PART III

SUPERANNUATION

Benefits in certain cases of premature retirement.

9.—(1) Where, after the coming into force of this section, the employment of a contributor who has attained the age of fifty-five years and completed ten years' service is terminated in the interests of efficiency before he has attained the age of sixty-five years, he shall be entitled to superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment:

Provided that this subsection shall not apply to a contributor if not later than one month after ceasing to hold his employment he notifies the Council in writing that he does not wish this subsection to apply to him.

(2) Where, after the coming into force of this section, a contributor who has attained the age of fifty years and completed twenty-five years' service, but has not attained pensionable age, terminates his employment at his own request, then superannuation benefits calculated by reference to the service which he was entitled

to reckon at the date when he ceased to hold his employment shall be payable in lieu of any entitlement to a return of contributions under section 10 of the Act of 1937:

PART III
—cont.

Provided that—

- (i) where a person has become entitled to a superannuation benefit by virtue of this subsection he may, by notice given to the Council in writing at any time before any payment on account of such benefit has been made to him, elect that this subsection and any rights to which he is entitled thereunder shall cease to apply in relation to him as from the date on which such notice is given;
- (ii) unless the Council otherwise determine on compassionate grounds, no benefit shall be paid to a person by virtue of this subsection before the date on which he attains pensionable age and in any event shall not be paid before the person attains the age of fifty-five years.

(3) Where a person, who has become entitled to a superannuation benefit by virtue of subsection (2) of this section, dies before any payment on account of such benefit has been made to him, the like benefits shall, as from the date of his death, be payable in respect of him as would have been paid if he had died on the last day of his employment as a contributor.

(4) For the avoidance of doubt it is hereby declared that where a person is for the time being entitled to any benefit by virtue of subsection (2) of this section, that benefit shall be deemed to be a superannuation benefit for the purpose of the definition of “service” in subsection (1) of section 40 of the Act of 1937 whether or not any payment has been made to him on account thereof.

(5) For the purposes of section 16 of the Act of 1953, and of any rules made thereunder, a person entitled to a superannuation benefit by virtue of subsection (2) of this section shall be deemed to cease to hold his employment on the day immediately preceding the day on which that benefit first becomes payable to him and a superannuation benefit as aforesaid shall be deemed to be such a superannuation allowance or benefit as is referred to in subsection (1) of the said section 16.

(6) The provisions of the principal Acts and the regulations made thereunder shall apply and have effect in relation to a person who is a contributor on or after the date of the coming into force of this section, subject to the extensions, modifications and applications of the said Acts and regulations contained in this section.

PART III
—cont.

(7) In this section—

- “pensionable age” in relation to any person means the earliest age at which, if he were to remain a contributor without a break of service, he would, on ceasing to hold his employment, become entitled to superannuation benefits by reason of having otherwise than under this section attained such age and completed such period of service as is prescribed in the principal Acts or the Local Government Superannuation (Benefits) Regulations, 1954, as the case may be;
- “the principal Acts” means the Local Government Superannuation Acts, 1937 to 1953;
- “return of contributions” in relation to a person who has ceased to be a contributor includes any sum paid to or in respect of him by way of interest on the amount of the contributions returned to him;
- “superannuation benefit” includes any benefit which is or may be granted in pursuance of the principal Acts or the regulations made thereunder, or in pursuance of any local Act or scheme or local Act scheme.

(8) This section shall come into force on 1st September, 1971.

Application
of the said
section 9 to
other
employing
authorities.

10.—(1) An authority to whom this section applies may by resolution adopt section 9 (Benefits in certain cases of premature retirement) of this Act as from such date, not being earlier than 1st September, 1971, as may be specified in such resolution, and where that section is so adopted it shall apply and have effect in relation to the authority as if—

- (a) any reference therein to a contributor was a reference to a contributor to the fund as respects whom the authority are the employing authority;
- (b) any reference therein to the Council was a reference to the authority.

(2) Where, in pursuance of the foregoing subsection, the said section 9 is adopted by an authority to whom this section applies as from a date later than 1st September, 1971, then any reference in that section to 1st September, 1971, or to the date of the coming into force of that section shall be construed in relation to the authority as a reference to such later date.

(3) This section applies to—

- (i) a local authority which does not maintain a superannuation fund under Part I of the Act of 1937;
- (ii) the Kesteven Magistrates' Courts Committee;
- (iii) the Kesteven Water Board;

- (iv) any organisation, undertaking or body in respect of which there is for the time being in force an admission agreement with the Council pursuant to section 15 of the Act of 1953;
- (v) any other employing authority in relation to which the fund is the appropriate superannuation fund within the meaning of paragraph (d) of subsection (3) of section 1 of the Act of 1937.

11.—(1) In its application to the investment by the Council under subsection (3) of section 21 of the Act of 1937 of any moneys forming part of but not for the time being required to meet payments out of the fund, the Act of 1961 shall have effect as if—

Extension of
power to
invest super-
annuation
fund moneys.

- (a) for paragraphs 3 and 4 of Part II of Schedule 1 to that Act there were substituted the following paragraphs:—

“ 3. In fixed-interest securities issued by any public, municipal or local authority, or any publicly controlled or nationalised industry or undertaking, whether established within or outside the United Kingdom.

4. In fixed-interest securities issued by the government of any territory outside the United Kingdom.”;

- (b) for paragraph 6 of Part II of the said Schedule 1 there were substituted the following paragraph:—

“ 6. In debentures issued by a company incorporated in the United Kingdom or established under the law of any territory outside the United Kingdom.”;

- (c) in paragraph 9 of Part II of the said Schedule 1 the words “ in the United Kingdom ”, where first occurring, were omitted and as if the following sub-paragraph were added at the end thereof:—

“ (g) any public, municipal or local authority established outside the United Kingdom.”;

- (d) in paragraph 3 of Part III of the said Schedule 1 the words from “ in the case ” to the end of the paragraph were omitted;

- (e) the following paragraphs were added at the end of Part III of the said Schedule 1:—

“ 4. In any securities (other than those included in Part I and Part II of this schedule) issued in any part of the world being securities which at the time of making the investment are quoted on any recognised stock exchange or similar institution.

5. In the acquisition, development or management of land situated in the United Kingdom or any interest in such land, and whether alone or in association with any other person:

PART III
—cont.

Provided that so long as the value of the investments of property for the time being made under the powers conferred by this paragraph is equal to or greater than one-quarter of the total value of the assets of the fund, no further investment may be made thereunder.

For the purposes of this paragraph an investment in the units of a unit trust scheme or in participation certificates or in any form of participation under any trust or scheme established in the United Kingdom having the effect of enabling persons to participate in the profits and income arising from the acquisition, development or management of such land as aforesaid, and whether alone or in association with any other person, shall be deemed to be an investment in the land in question.”;

(f) in paragraph 1 of Part IV of the said Schedule 1, after the word “schedule”, there were inserted the words “other than those mentioned in paragraph 4 of the said Part III”;

(g) the following paragraph were inserted after paragraph 2 of Part IV of the said Schedule 1:—

“2A. The securities mentioned in paragraph 4 of Part III of this schedule do not include shares or debenture stock not fully paid up (except shares or debenture stock which, by the terms of issue, are required to be fully paid up within nine months of the date of issue).”;

(h) in paragraph 3 of Part IV of the said Schedule 1, the words “and paragraph 1 of Part III” were omitted;

(i) for sub-paragraph (a) of paragraph 3 of Part IV of the said Schedule 1, there were substituted the following sub-paragraph:—

“(a) debentures of a company of which the total issued and paid-up share capital is less than five hundred thousand pounds, or (as the case may be) an equivalent sum in any foreign currency in which such share capital is issued at the rate of exchange current at the time when the investment is made;”;

(j) in sub-paragraph (b) of paragraph 3 of Part IV of the said Schedule 1, for the word “five” there were substituted the word “four” and as if at the end thereof there were added the words “or if the company has been incorporated or registered or has been trading for less than four years preceding the said calendar year unless the company has paid such a dividend for each of the years since incorporation or registration or commencement of trading, as the case may be.”.

(2) Notwithstanding anything in the Act of 1961, the Council may invest any moneys referred to in subsection (1) of this section in any manner specified in Part III of Schedule 1 to that Act, as amended by this section, and may also from time to time vary any such investments:

Provided that no such moneys as aforesaid shall be so invested at any time when the value of all the investments made in the manner specified in Part III of the said schedule as so amended equals or exceeds three-quarters of the total value of the assets of the superannuation fund.

(3) For the purposes of subsection (2) of this section and of Schedule 1 to the Act of 1961, as amended by this section, the value of any investment of moneys forming part of the superannuation fund shall be treated as being the value of the investment at the time at which it was made.

(4) Without prejudice to the powers under paragraph 5 of Part III of Schedule 1 to the Act of 1961, as amended by this section, to invest in the units of a unit trust scheme, participation certificates or other form of participation, the Council shall not exercise the powers of the said paragraph 5 in relation to any land situate in the county.

(5) The provisions of this section shall have effect notwithstanding anything in subsection (3) of section 21 of the Act of 1937.

(6) In this section “the Act of 1961” means the Trustee Investments Act, 1961.

1961 c. 62.

12. All costs, charges and expenses incurred by the Council in investing moneys forming part of the fund, or otherwise in relation thereto, may be paid by the Council out of the fund.

Expenses of investment of fund.

13.—(1) Section 18 of the Act of 1953, in its application to the Council shall have effect as if—

Extension of powers of Council to grant gratuities to widows and dependants of former employees.

(i) for the expression “to the widow or any other dependant” in subsections (1) and (2) there were substituted the words “to a dependant”;

(ii) after paragraph (c) of subsection (1) there were inserted the following new paragraph:—

“(d) Partly by way of an annuity for the benefit of the widow and partly by way of periodical payments for the benefit of such of the children of the deceased employee who shall for the time being be under the age of twenty-one years:

Provided that the aggregate of the capital value of such annuity and of such periodical payments shall not exceed the amount aforesaid.”

PART III
—cont.

(2) Subsection (1) of the said section 18 (as amended by the last foregoing subsection) shall apply to a dependant of a former employee of the Council who dies within one year after ceasing to be in their employment as it applies to a dependant of an employee who dies whilst in their employment:

Provided that no gratuity shall be granted under this subsection to a dependant of a former employee to whom a gratuity has been granted under subsection (1) of the said section 18.

Transfer of
certain sums
from fund.

14.—(1) If a contributor is dismissed or resigns or otherwise ceases to hold employment in consequence of an offence of a fraudulent character or grave misconduct, the Council may transfer from the fund to the county fund an amount not exceeding the whole, or any part, of any contributions not returned to him or paid to his wife or family under subsection (4) of section 10 of the Act of 1937, or the amount of loss suffered by the Council in consequence of the employee's offence or misconduct whichever is the less.

(2) If a contributory employee of an employing authority whose employees participate in the benefits of the fund is dismissed, resigns or otherwise ceases to hold employment in consequence of an offence of a fraudulent character or grave misconduct by reason of which the employing authority have suffered direct financial loss, the Council shall, on demand from the employing authority, pay to them out of such fund an amount equal to so much of the employee's contributions to the fund as the employing authority have not directed to be returned to the employee or paid to his wife or family, or the amount of such loss suffered by the employing authority in consequence of his offence or misconduct, whichever is the less:

Provided that—

1965 c. 51.

- (a) where a payment in lieu of contributions falls to be made in respect of the employee under the National Insurance Act, 1965, the Council shall not under this subsection be required to pay to the employing authority so much of the employee's contributions as amounts to one-half of such payment in lieu of contributions;
- (b) the Council shall not be required to pay to the employing authority so much of the employee's contributions as relates to any period of previous service, unless the employing authority have directed that all rights enjoyed by or in respect of him with respect to that period of previous service, being rights under Part I of the Act of 1937 or under the Act of 1953, or any regulations made thereunder, shall be forfeited.

PART IV

MISCELLANEOUS AND GENERAL

15.—(1) The Council may pay compensation—

Compensation
for injury to
or death of
employees.

(a) to any of their employees who sustains an injury in the course of his employment; or

(b) to a dependant of any of their employees who, in the course of his employment, dies or sustains an injury resulting in death.

(2) Any compensation payable under this section may be paid either—

(a) by way of a lump sum; or

(b) by way of periodical payments of such amounts and payable at such times and for such periods as the Council may from time to time determine having regard to all the circumstances of the case.

(3) The payment of compensation under this section shall not affect any right or claim to damages or compensation which an employee of the Council or his dependant may have against any person other than the Council, or, except so far as may be agreed when the compensation is granted, against the Council.

16.—(1) The provisions of section 15 (Compensation for injury to or death of employees) of this Act shall extend so as to authorise (in the case of a voluntary assistant) the Council and (in the case of any other person to whom this section applies) with the consent of the Council the body by whom that person is or was employed to pay compensation to any person to whom this section applies, or to the widow or widower or child of any such person.

Extension of
section 15 to
voluntary
assistants,
etc.

(2) This section applies to—

(a) any voluntary assistant;

(b) any person employed by the managers or governors of any voluntary school in the county.

(3) In this section “voluntary assistant” means a person who, at the request of the Council, or an authorised officer of the Council, performs any service or does anything, otherwise than for profit or reward, for the purposes of, or in connection with, the carrying out of any of the functions of the Council, and includes any officer or member of a voluntary organisation which provides in the county services or facilities of the kind provided by the Council in pursuance of their functions or to which the Council make any financial contribution.

PART IV
—cont.

Application
of certain
provisions
to other
authorities.

17.—(1) (a) The provisions of this Act mentioned in paragraph (b) of this subsection shall apply to a local authority, and for that purpose those provisions shall have effect as if for references therein to the Council and to the county fund there were substituted references to the local authority and to their general rate fund respectively and subject to any other necessary modifications.

(b) The provisions hereinbefore referred to are the following:—

Section 8 (Insurance fund);

Section 13 (Extension of powers of Council to grant gratuities to widows and dependants of former employees);

Section 15 (Compensation for injury to or death of employees);

Section 16 (Extension of section 15 to voluntary assistants, etc.).

(2) The provisions of sections 13 and 15 and (so far as relating to voluntary assistants) section 16 of this Act shall also apply to the following authorities (in this subsection called “employing authorities”)—

(i) the Kesteven Magistrates’ Courts Committee;

(ii) the Kesteven Water Board;

(iii) any organisation, undertaking or body in respect of which there is for the time being in force an admission agreement with the Council pursuant to section 15 of the Act of 1953; and

(iv) any other employing authority in relation to which the fund is the appropriate superannuation fund within the meaning of paragraph (d) of subsection (3) of section 1 of the Act of 1937;

as they apply to the Council and for that purpose those provisions shall have effect as if any reference therein to an employee of the Council were a reference to an employee of any of the employing authorities and as if in the said section 16 reference to the county were a reference to the areas respectively for which the employing authorities have responsibility.

Saving for
powers of
Treasury.

1946 c. 58.

18. It shall not be lawful to exercise the powers of borrowing conferred by the provisions of this Act, except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act, 1946.

Saving for
Exchange
Control Act,
1947.

1947 c. 14.

19. It shall not be lawful to exercise the powers conferred by any of the provisions of this Act except in compliance with the Exchange Control Act, 1947.

20.—(1) The costs, charges and expenses preliminary to, and of and incidental to, the preparing, applying for, obtaining and passing of this Act or otherwise in relation thereto, shall be paid by the Council out of the county fund or out of moneys to be borrowed under this Act. PART IV
—cont.
Costs of
Act.

(2) The Council may borrow, without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act and, subject to the provisions of this section, Part IX of the Act of 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(3) The Council shall repay the sums borrowed under the foregoing subsection within five years from the date of borrowing.

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